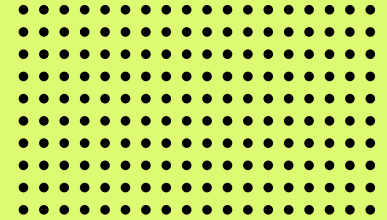


Lawhive - Hackathon 2026



CASE BRIEF / MESSY, SEVERE

CASE 10

I TOOK MY NEIGHBOUR TO COURT AND LOST, CAN I TRY AGAIN? V.01

LONDON 30/05/26

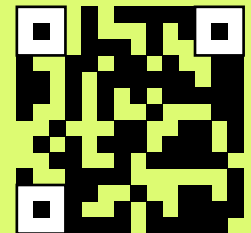
MESSY, SEVERE



CLAIMANT

George Bertram Dobbs

63, retired teacher, Sheffield



SPONSORED BY

ANTHROP\C

Google Cloud

Balderton.

CASE 10 / MESSY, SEVERE / PROBLEM STATEMENT

SMALL-CLAIMS-APPEAL-CASE-10

I took my neighbour to court and lost, can I try again?

George Bertram Dobbs, 63, retired teacher, Sheffield

PROBLEM, IN THE CLIENT'S OWN WORDS

My neighbour has a large oak tree near the boundary of our properties. Over the past few years the roots have caused serious damage to my garden wall and patio. I got a quote for £4,200 to put it all right and I wanted my neighbour to pay it.

I tried talking to them first but they refused, saying the tree was there when I bought the house and it's not their problem. So I took them to small claims court myself. I thought the facts were straightforward and I could handle it.

I got it wrong. I didn't get a surveyor's report, I just used photos and a general assessment from the builder who gave me the quote. I also didn't follow the court's directions properly. I missed the deadline to file my witness statement and sent it in late. I didn't file a proper schedule of loss either, just attached the quote.

At the hearing, my neighbour had a solicitor. They argued I hadn't proven the tree actually caused the damage, they said it could have been pre-existing subsidence. The judge dismissed my claim. He specifically mentioned the lack of expert evidence and my failure to comply with the directions.

That was six weeks ago. I'm still certain the tree caused the damage, I've lived here for nearly forty years and the problems started when the tree got big, but I accept I didn't present the case properly.

Is there anything I can do? Can I appeal? Can I start again? Or have I lost my chance? I should say the £4,200 is a lot of money for me as a retiree and I'm not sure how much more I can afford to spend pursuing this further.

KEY INFORMATION

Claimant	George Bertram Dobbs
Claimant address	12 Linden Close, Sheffield S11 8AP
Defendant	Adrian Reeves
Defendant address	14 Linden Close, Sheffield S11 8AP
Claim amount	£4,200 (quoted cost of remedial works)
Hearing outcome	Claim dismissed, six weeks ago.
Judge's findings	Lack of expert evidence on causation, failure to comply with directions

CASE 10 / MESSY, SEVERE / PROBLEM STATEMENT

SMALL - CLAIMS - APPEAL - CASE - 10

DOCUMENTS PROVIDED

#	FILE NAME	DESCRIPTION
01	N1_1224.pdf	The original N1 claim form George filed as a litigant in person. Describes the tree root damage and claims £4,200 in repair costs.
02	court_directions_order.pdf	Court's standard directions order setting deadlines for witness statements, documents, and expert evidence.
03	witness_statement_late.pdf	George's witness statement, filed seven days after the court deadline. Describes the damage in his own words with references to photos but no expert opinion.
04	builder_quotation.pdf	Quotation from the builder of £4,200 for remedial works to the garden wall and patio. Includes a note: 'Damage consistent with root ingress'.
05	builder_assessment_email.pdf	Email from the builder giving a general view that the damage was caused by tree roots, but stating 'I'm not a surveyor and can't say for certain'.
06	damages_photos/	13 photos showing cracked garden wall, lifted patio slabs, and visible roots near the boundary. Taken by George over approximately three and a half years.
07	n9b_0524_save.pdf	Defence filed by the neighbour's solicitor arguing lack of expert evidence and suggesting pre-existing subsidence unrelated to the tree.
08	judgment_order.pdf	District judge's written order dismissing the claim. Notes the absence of expert evidence linking the damage to the tree and George's failure to comply with the directions timetable.
09	court_correspondence_missed_deadline.pdf	Letter from the court noting that George's witness statement was received after the deadline and warning that late evidence may not be admitted.
10	henley_pace_sje_letter.pdf	Letter from the Defendant's solicitors to George dated 1 December 2025 inviting agreement on a single joint expert under CPR 35.7 (which George did not accept).